UNITED STATES DISTRICT COURT
DISTRICT OF MASSACHUSETTS

PRESIDENTS' ALLIANCE ON HIGHER EDUCATION AND IMMIGRATION, et al.,	)	
Plaintiffs,	)	
v.	)	**Civil Action No. 26-13799-FDS**
UNITED STATES DEPARTMENT OF HOMELAND SECURITY, et al.,	)	
Defendants.	)	

PRELIMINARY INJUNCTION ORDER
POSTPONING EFFECTIVE DATE OF FINAL RULE

Pursuant to § 705 of the Administrative Procedure Act and Fed. R. Civ. P. 65, after a hearing, and for the reasons set forth in the Court's Memorandum and Order, filed herewith, Plaintiffs' Motion for APA § 705 Relief, a Preliminary Injunction or, Alternatively, Summary Judgment, is GRANTED in part and DENIED in part, as follows:

1. For purposes of this Order,

   a. the term "Final Rule" shall mean the Final Rule entitled "*Establishing a Fixed Time Period of Admission and an Extension of Stay Procedure for Nonimmigrant Academic Students, Exchange Visitors, and Representatives of Foreign Information Media*," published at 91 Fed. Reg. 44976 (July 17, 2026); and

   b. the term "Defendants" shall mean the United States Department of Homeland Security, United States Immigration and Customs Enforcement, Markwayne Mullin, in his official capacity as Secretary of Homeland Security, and David

Venturella, in his official capacity as Acting Director of United States Immigration and Customs Enforcement.

2. Plaintiffs' Motion to Stay Under 5 U.S.C. 705 is GRANTED to the extent that it seeks to postpone the effective date of the Final Rule pursuant to the Administrative Procedure Act, 5 U.S.C. § 705.

3. The effective date of the Final Rule is hereby POSTPONED pending further order of this court or resolution of this proceeding on the merits.

4. Defendants are preliminarily enjoined from taking any further action to implement the Final Rule pending further order of this court or resolution of this proceeding on the merits.

5. To the extent that plaintiffs seek vacatur of the Final Rule, summary judgment in their favor, or other relief, the motion is DENIED without prejudice to its renewal.

So Ordered.

Dated at Boston, Massachusetts
4:55 p.m.
September 14, 2026

/s/ F. Dennis Saylor IV
F. Dennis Saylor IV
United States District Judge